

SENATE No. 2317

The Commonwealth of Massachusetts

PRESENTED BY:

Jacob R. Oliveira

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to energy generation payments.

PETITION OF:

NAME:

Jacob R. Oliveira

DISTRICT/ADDRESS:

Hampden, Hampshire and Worcester

SENATE No. 2317

By Mr. Oliveira, a petition (accompanied by bill, Senate, No. 2317) of Jacob R. Oliveira for legislation relative to distribution company payments of energy credits to a customers. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to energy generation payments.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. Section 139 of Chapter 164 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the words “applicable rate” the following:-

3 “(3) A distribution company shall provide payment to a customer for a credit under
4 Section 139(a)(1) of this Chapter provided that such credit has been carried forward for six
5 months or more. For the purpose of determining the age of a credit, a distribution company shall
6 apply any applicable costs against the most recent credit issued by the distribution company. A
7 distribution company customer eligible for payment under this section may opt to defer payment.

8 (4) A distribution company shall provide payment to a customer for any outstanding
9 credit under Section 139(a)(1) of this Chapter within 30 days of the customer closing the account
10 with the distribution company.

11 (5) Payments received by a distribution company customer pursuant to Section 139(a)(3)
12 and Section 139(a)(4) of this Chapter shall not be considered to be a credit, rebate,

13 environmental attribute, renewable energy credit, or other payment or offset that may be
14 construed to be attributable to a renewable energy system.

15 Section 2. The department shall promulgate regulations pursuant to this subsection
16 including, but not limited to, a schedule for payments at least once annually; method of payment
17 including the option for a distribution company customer to receive an electronic transfer of
18 funds; notice to a distribution company customer of payment eligibility; and process for deferral
19 of payments.”